

Exam 3P

Course Title: **Terminología Especializada Jurídica Inglés-Español**
Course ID: **IT0732 (Marron), 26-1**
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General Instructions: Print your name in the upper right-hand corner of this paper. Read each item carefully. Be sure that you understand exactly what is being asked of you. Do not look at other student's exams. If you have a question or a request during the exam, raise your hand and the instructor will call on you.

This is **an open book exam**. You may use HW_10 to help you with the exam. Attempt to answer all questions, even if you are uncertain. Whenever possible, provide answers in bullet list format with complete content. Tasks will be evaluated by sub-tasks. Three (3) points are available for each sub-task: Accuracy (1 pt), Completeness (1 pt), and Sufficiency (1 pt). Points will be awarded in 0.1 increments. Answer in English unless requested to do so otherwise.

Task 1 (6 pts)

While Méjan¹ provides an excellent reference to contract law, the real source of contract law in Mexico lies in Artículos 1792 al 1859 of the Código Civil Federal. Translate the following compiled federal codes regarding contracts into English:

- (1) Convenio es el acuerdo de dos o más personas para crear, transferir, modificar o extinguir obligaciones. Los convenios que producen o transfieren las obligaciones y derechos, toman el nombre de contratos. (Artículos 1792, 1793)
- (2) Para la existencia del contrato se requiere consentimiento, y objeto que pueda ser materia del contrato. El consentimiento puede ser expreso o tácito, para ello se estará a lo siguiente: a) Será expreso cuando la voluntad se manifiesta verbalmente, por escrito, por medios electrónicos, ópticos o por cualquier otra tecnología, o por signos inequívocos, y b) el tácito resultará de hechos o de actos que lo presupongan o que autoricen a presumirlo, excepto en los casos en que por ley o por convenio la voluntad deba manifestarse expresamente. (Artículos 1794, 1803)
- (3) Son objeto de los contratos: a) La cosa que el obligado debe dar; y b) El hecho que el obligado debe hacer o no hacer. La cosa objeto del contrato debe: 1o. Existir en la naturaleza. 2o. Ser determinada o determinable en cuanto a su especie. 3o. Estar en el comercio. El hecho positivo o negativo, objeto del contrato, debe ser: posible y lícito. (Artículos 1824, 1825, 1827)

Task 2 (6 pts)

In the "real world", large organizations (both public and private) get work done by hiring contractors through an RFP (Request for Proposal) process. Answer the following questions:

1 Méjan, L. M. C. (2015). *Contratos civiles: ayuda de memoria*. Oxford University Press.

- (1) What is an RFP?
- (2) What is the purpose of an RFP? That is, why is the RFP process used for hiring contractors?

Task 3 (6 pts)

Lawyers have confidentiality duties to clients as well as the need to maintain and grow their professional skill set. Artificial intelligence (AI) may confound these two ethical duties Terzidou² has pointed out some of the problems when lawyers use AI and offers recommendations. The recommendations are designed to balance lawyers' potentially conflicting duties. Answer the following questions:

- (1) Do you think lawyers should use AI agents in their work? Briefly explain why or why not.
- (2) What are the main points of the author's three-step plan to ethically balance lawyers use of AI?
- (3) Do you think this plan will work?

Task 4 (6 pts)

There is little doubt that the introduction of AI into human affairs will create massive societal changes. As noted by the AI Futures Project³ and Richard David Hames⁴, the actual changes may be beautiful or terrifying. Answer the following questions:

- (1) What do think of the analysis presented in each paper?
- (2) What are your thoughts on the future of humans with AI?

Task 5 (9 pts)

As pointed out by de Sio and Mecacci⁵, there are major legal gaps in our laws when it comes to AI, especially when it comes to assigning responsibility. Answer the following questions related de Sio and Mecacci's paper:

- (1) What is meant by the term, "responsibility gap" with regards to AI?
- (2) What is the Culpability Gap and why does it matter?
- (3) What is the Active Responsibility Gap and why does it matter?
- (4) What is the authors' integrated solution to AI responsibility known as Meaningful Human Control (MHC)?

Task 6 (6 pts)

Drone technology, like AI, is rapidly advancing. As noted by Žalimienė and Stonkusa⁶, this new technology also will need careful legal considerations, especially in the area of surveillance. Answer the following questions:

- (1) Privacy is a constitutional value recognized in the vast majority of countries. What is your definition of privacy?
- (2) Drones can gather detailed biometric data as well as detailed physical data. Should these capabilities be legally restricted? If yes, how should such laws be structured?

2 Terzidou, K. (2025). Generative AI systems in legal practice offering quality legal services while upholding legal ethics. *International Journal of Law in Context*, 1-22.

3 AI 2027, The AI Futures Project, <https://ai-2027.com/>

4 The Future of AI, Richard David Hames, <https://richarddavidhames.substack.com/p/the-future-of-ai>

5 Santoni de Sio, Filippo, and Giulio Mecacci. "Four responsibility gaps with artificial intelligence: Why they matter and how to address them." *Philosophy & technology* 34, no. 4 (2021): 1057-1084.

6 Žalimienė, S., & Stonkus, S. (2025). Aerial surveillance in the digital age: drone-related privacy concerns and the protection of other human rights. *Human rights in the digital domain: core questions*, 283-307.

- (3) The authors recommend that drone use should be regulated but that legislators must strike a fair balance between the conflicting values of privacy and freedom of technological development. Specifically, the authors suggest that legal constraints on drone use must "rely ... on the proportionality principle (or other legal balancing methods) in order to reconcile conflicting human rights." What is the principle of proportionality?